

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P. No.9234 of 2022.

Saba Sarwar.

Versus

Govt. of Punjab, etc.

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties' counsel, where necessary
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21.06.2022	Raja Naveed Azam, Advocate for the petitioner. Mr. Ghias Ul Haq, Assistant Advocate General, Punjab with Tariq Javed, Assistant Litigation, office of Assistant Litigation DEO (EE-W), Multan.
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Through this writ petition, the petitioner has challenged the order dated 01.06.2022 passed by respondent No.1 to the extent of reconsidering appointment of the petitioner.

2. The unchallenged facts stated in the impugned order are that the District Education Authority (DEA), Multan advertised the posts of Elementary School Educators (ESE) (Sci-Math) GGHS Khaliq Pura but erroneously mentioned Union Council-70 against the name of the school in the advertisement despite the fact that the school is actually located at Union Council-66 (Urban). The petitioner and respondent No.7 applied for the said post against the name of school while mentioning UC-70. The petitioner is resident of UC-70 Jahangir Abad (Rural), District Multan whereas respondent No.7 is a permanent resident of UC-66 Jahangir Abad (Urban), District Multan. The District Recruitment Committee (DRC) awarded twelve additional marks of local residence to the petitioner and generated letter of agreement against the post of ESE (Sci-Math) at GGHS Khaliq Pura. It has been noted in the impugned order that the error in the advertisement regarding UC of GGHS Khaliq Pura came to the knowledge of the District Recruitment Committee

(DRC)/Appointing Authority well within time, however, no corrigendum regarding correction of name of U/C against the said school was got published. Additionally, it has been noted in the impugned order, that merit of some other candidates who were also erroneously awarded twelve additional marks of local residence was revised, however, merit of the petitioner was not revised/rectified and *mala fide* has been attributed on part of the concern officials/officers in that regard. Representations made by the petitioner and respondent No.7 as a consequence of the order dated 29.03.2022 passed by this Court in W.P Nos. 17521/2021 and 19838/2021 respectively were rejected being devoid of merit by the Secretary School Education, Government of the Punjab on the ground that additional marks for local residence could be awarded only in case of Rural Union Councils which were part of District Council only as manifest from Para No.5 (ii) of Recruitment Policy, 2016-17 and that case of both was not covered under the said Policy. Accordingly, CEO (DEA), Multan was directed to get an inquiry conducted regarding illegal award of additional marks of local residence to the petitioner and issuance of appointment order in her favour and send the report to School Education Department, Lahore within seven days from receipt of impugned order alongwith the names of officers/officials responsible for the wrong doing with proper charge sheet for initiating disciplinary proceedings under the PEEDA Act, 2006.

3. It is case of the petitioner that she was duly appointed against the post of ESE (Sci-Math) GGHS Khaliq Pura pursuant to the advertisement by the District Education Authority (DEA), Multan and that she could not be deprived of the said job on the basis of any error occurring in the advertisement for recruitment regarding the name of school

or location thereof. Learned counsel for the petitioner emphasizes that no fault has been attributed to the petitioner in the impugned order and the error in the advertisement for recruitment, if any, is attributable to other officials against whom inquiry has been ordered and the petitioner is seeking no relief in relation to that. He maintains that appointment letter was issued against the petitioner who joined the service and performed for more than four years against the post, therefore, she cannot be penalized for no wrong attributed to her.

4. It is noteworthy that learned counsel for the petitioner has not challenged the impugned order on the ground of entitlement of the petitioner under the Recruitment Policy 2016-17, therefore, the impugned order is not questionable in so far as lack of entitlement of the petitioner to additional marks for local residence under Para 5(ii) of the Policy is concerned.

5. The principle of law enunciated by the Hon'ble Supreme Court of Pakistan in the case of Punjab Public Service Commission v. Husnain Abbas and other (2021 SCMR 1017) is to the effect that no vested right would have accrued in favour of the person by virtue of an erroneous merit list prepared on the basis of an erroneous advertisement which had been published in violation of the Government Policy in vogue. Following the said principle, contention of the petitioner that her appointment, even if made on the basis of an erroneous merit list prepared pursuant to an erroneous advertisement in violation of the Government Policy, cannot be disturbed when the mistake is attributable to someone else, is untenable.

6. Even otherwise, the matter is still under inquiry wherein the roles attributable in the advertisement and issuance of appointment letter of the petitioner are yet to be

determined, therefore, it would be premature to state who is involved or absolved at this stage. The petitioner undisputedly is beneficiary of the errors in recruitment process here, therefore, it would be improper on part of this Court to exercise extraordinary jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

7. For the foregoing reasons, the instant writ petition is ***dismissed*** being devoid of any merit.

(RAHEEL KAMRAN)
JUDGE

Asim Shahzad